IN THE NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH, PRAYAGRAJ

CP (CAA) NO. 19/ALD/2023
(2nd Motion)

(Under Sections 230 & 232 of the Companies Act, 2013, the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, and other applicable provisions of the Companies Act, 2013).

IN THE MATTER OF COMPOSITE SCHEME OF AMALGAMATION BETWEEN:

AVENUE SALES PRIVATE LIMITED,

A company incorporated under the provisions of the Companies Act, 1956 (CIN: U51109UP2007PTC159127) and having its Registered Office at C/O Arun Kumar Srivastava LIG 19, Vikas Nagar Vistar, Bargadwa, Gorakhpur - 273007, in the State of Uttar Pradesh within the aforesaid jurisdiction.

... Transferor Company No.1 of Section A /Petitioner No 1

AND

BLACKBASS TRADELINK PRIVATE LIMITED,

A company incorporated under the provisions of the Companies Act, 1956 (CIN: U51909UP2010PTC083026) and having its Registered Office at C/O Arun Kumar Srivastava LIG 19, Vikas Nagar Vistar, Bargadwa, Gorakhpur - 273007, in the State of Uttar Pradesh within the aforesaid jurisdiction;

... Transferor Company No 2 of Section A / Petitioner No 2

AND

GODHULI RETAILERS PRIVATE LIMITED,

A company incorporated under the provisions of the Companies Act, 1956 (CIN: U51909UP2010PTC083027) and having its Registered Office at C/O Arun Kumar Srivastava LIG

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19, Vikas Nagar Vistar, Bargadwa, Gorakhpur - 273007, in the State of Uttar Pradesh within the aforesaid jurisdiction;

... Transferor Company No 3 of Section A / Petitioner No 3

AND

HERITAGE COMMOSALES PRIVATE LIMITED,

A company incorporated under the provisions of the Companies Act, 1956 (CIN: U51909UP2010PTC083029) and having its registered office at C/O Arun Kumar Srivastava LIG 19, Vikas Nagar Vistar, Bargadwa, Gorakhpur - 273007, in the State of Uttar Pradesh within the aforesaid jurisdiction;

... Transferor Company No 4 of Section A / Petitioner No 4

AND

RAM KRIPAL EXIM PRIVATE LIMITED,

A company incorporated under the provisions of the Companies Act, 1956 (CIN: U74900UP2010PTC039567) and having its registered office at Rayana Regency, Rushtampur Dhala West, Gorakhpur - 273001 within the aforesaid jurisdiction;

... Transferor Company No 5 of Section A / Petitioner No 5

AND

ARYA TRADECOM PRIVATE LIMITED,

A company incorporated under the provisions of the Companies Act, 1956 (CIN: U51109UP2008PTC083028) and having its Registered Office at C/O Arun Kumar Srivastava LIG 19, Vikas Nagar Vistar, Bargadwa, Gorakhpur - 273007, in the State of Uttar Pradesh within the aforesaid jurisdiction;

... Transferor Company of Section B / Petitioner No 6

AND

RAYANA PAPER BOARD INDUSTRIES LIMITED,

A company incorporated under the provisions of the Companies Act, 1956 (CIN: U21011UP1986PLC008433) and having its Registered Office at Rayana Regency, Rushtampur Dhala West, Gorakhpur 273001 within the aforesaid jurisdiction**;**

...Transferee Company of Section A and Section B/ Petitioner No 7.

Order pronounced on: 30th July, 2024

Coram:

Mr. Praveen Gupta.	:	Member (Judicial)
Mr. Ashish Verma	:	Member (Technical)

Appearances:

Mr. N. Gurumurthy, FCA Ms. Aisha Amin, Advocate	: For the Petitioner Companies
Sh. Ajeet Kumar Singh, AOL.	: For the RD (NR) *& OL, Alld*
Sh. Krishna Dev Vyas, Advocate	: For the ROC
Sh. Krishna Agarwal Sr. Standing Counsel	: For the IT Department

ORDER

1. The present Joint Company Petition is filed by the Petitioner Companies above named under Sections 230

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& 232 of the Companies Act, 2013, read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, and other applicable provisions, if any, for sanction of the Composite Scheme of Amalgamation ("Scheme" or "Composite Scheme of Amalgamation") between **Avenue Sales Private Limited** - Transferor Company No 1 of Section A / Petitioner No 1, **Blackbass Tradelink Private Limited** - Transferor Company No 2 of Section A / Petitioner No 2, **Godhuli Retailers Private Limited** - Transferor Company No 3 of Section A / Petitioner No. 3, **Heritage Commosales Private Limited** - Transferor Company No 4 of Section A / Petitioner No 4 **Ram Kripal Exim Private Limited** - Transferor Company No 5 of Section A / Petitioner No 5, **Arya Tradecom Private Limited** - Transferor Company of Section B / Petitioner No 6, **Rayana Paper Board Industries Limited** - Transferee Company of Section A and Section B/Petitioner No 7 .

2. The Petition has now come up for final hearing. The Ld. Counsel for the Petitioner Companies submits as follows:

i. The proposed 'Composite Scheme of Amalgamation' has previously been approved by the Board of Directors of Petitioner Companies in their respective Board Meetings held on 10th November, 2022.

ii. The factual position of the Authorized, Issued, Subscribed and Paid-up Share Capital of the Petitioner Companies as on 31st March, 2022 is described in the present Company Petition.

iii. The rationale of the proposed Composite Scheme of Amalgamation is elaborately described in the present Company Petition which may be summarized as under:

IN RELATION TO SECTION A OF THE SCHEME

a) The Transferor Companies are closely held family-owned controlled companies. The Transferee Company is also a closely held family-owned controlled company wherein the entire shares of the company are held by the family members and their HUF of which they are members. The Transferee Company is an associate of Transferor Company No.1.

b) This Composite Scheme of Amalgamation is proposed to scale down the number of companies in the family and to have one big company for better management and for proper and timely compliance.

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c) The business of the Transferor Companies and the Transferee Company can be combined/adjusted and carried forward conveniently with combined strength;

d) The amalgamation will enable the Transferee Company to consolidate its line of business by restructuring and re-organizing its business activities and Capital Structure;

e) The amalgamation will enable the amalgamated company to broad base their business activities under the roof of the Transferee Company;

f) The amalgamation will result in economy of scale including reduction in overhead expenses relating to management and administration in better and more productive utilization of various resources;

g) The business of the Transferor Companies can be conveniently and advantageously combined together in general business of the Company concerned and will be carried on more economically and profitably under the said Composite Scheme;

h) The said Composite Scheme of Amalgamation will enable the establishment of a larger company with larger resources and a larger capital base enabling further development of

the business of the company concerned. The said Composite Scheme will also enable the undertakings and business of the said Petitioner company to obtain greater facilities possessed and enjoyed by one large company compared with a number of small Companies for raising capital, securing and conducting trade on favorable terms and other benefits;

i) The said Composite Scheme will contribute in furthering and fulfilling the objects of the Company concerned and, in the growth, and development of these businesses;

j) The said Composite Scheme will strengthen and consolidate the position of the amalgamated company and will enable the amalgamated company to increase its profitability;

k) The said Composite Scheme will enable the undertakings concerned to pool their resources and to expand their activities;

l) The said Composite Scheme will enable the Companies concerned to rationalize and streamline their management, business and finances and to eliminate duplication of work to their common advantages;

m) The said Composite Scheme will have beneficial results for the Companies

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concerned, their shareholders, employees and all concerned.

IN RELATION TO SECTION B OF THE SCHEME

a) The Transferor Company No. 2, The Transferor Company No. 3 and the Transferor Company No. 4 of Section A are the promoters of the Transferor Company of Section B. Upon Amalgamation of the Transferor Company No. 2, The Transferor Company No. 3 and The Transferor Company No. 4 with the Transferee Company the entire shares of the Transferor Company No. 6 will consequently be held by the Transferee Company. Thus, the Transferor Company No. 6 is merged with the Transferee Company as the entire shares are held by it.

b) The business of the Transferor Companies and the Transferee Company can be combined/adjusted and carried forward conveniently with combined strength;

c) The amalgamation will enable the Transferee Company to consolidate its line of business by restructuring and re-organizing its business activities and Capital Structure;

d) The amalgamation will enable the amalgamated company to broad base their business activities under the roof of the Transferee Company;

e) The amalgamation will result in economy of scale including reduction in overhead expenses relating to management and administration in better and more productive utilization of various resources;

f) The business of the Transferor Companies can be conveniently and advantageously combined together in general business of the Company concerned and will be carried on more economically and profitably under the said Composite Scheme;

g) The said Composite Scheme of Amalgamation will enable the establishment of a larger company with larger resources and a larger capital base enabling further development of the business of the company concerned. The said Composite Scheme will also enable the undertakings and business of the said Petitioner company to obtain greater facilities possessed and enjoyed by one large company compared with a number of small Companies for raising capital, securing and conducting trade on favorable terms and other benefits;

h) The said Composite Scheme will contribute in furthering and fulfilling the objects of the Company concerned and, in the growth, and development of these businesses;

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i) The said Composite Scheme will strengthen and consolidate the position of the amalgamated company and will enable the amalgamated company to increase its profitability;

j) The said Composite Scheme will enable the undertakings concerned to pool their resources and to expand their activities;

k) The said Composite Scheme will enable the Companies concerned to rationalize and streamline their management, business and finances and to eliminate duplication of work to their common advantages;

l) The said Composite Scheme will have beneficial results for the Companies concerned, their shareholders, employees and all concerned.

3. The Petitioners have stated that the accounting treatment proposed in the Composite Scheme of Amalgamation is in conformity with the Accounting Standards prescribed under Section 133 of the Companies Act, 2013 as certified by the respective Auditors of the Petitioner Companies.

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4. It has also been stated in the Petition that no proceedings under Sections 235 to 251 of the Companies Act, 1956 or under Sections 210 to 226 of the Companies Act, 2013 are pending against any of the Petitioner Companies.

5. It has also been stated in the Petition that the Composite Scheme is not prejudicial to the interest of the Shareholders and Creditors of the Petitioner Companies and the Petition is made *bona-fide* and is in the interest of all the Petitioner Companies and their respective Shareholders and Creditors as a whole and is just and equitable.

6. It has been stated that the Transferor Companies and the Transferee Company are closely held companies and their shares are not listed on any Stock Exchange.

7. It is also submitted that a valuation exercise has been carried out to determine the share swap ratio for the proposed Composite Scheme of Amalgamation by CA Mukesh Banka, Registered Valuer, in respect of Securities or Financial Assets, registered with the Insolvency and Bankruptcy Board of India (IBBI) vide

Registration No. IBBI/RV/06/2020/12905, has prepared the Report on Valuation of Shares and Share Exchange Ratio. The following Share Exchange Ratio has been proposed for the proposed Composite Scheme of Amalgamation:

"IN RESPECT OF SECTION A OF THE SCHEME

a) To every Equity Shareholder of TRANSFEROR COMPANY NO.1 FOR SECTION A, 43 (Forty-Three) Equity Shares of Rs.10/- credited as fully paid-up in the TRANSFEREE COMPANY FOR SECTION A (hereinafter referred to as the "New Equity Shares") for every 8 (Eight) Equity Shares of Rs.10/- each fully paid-up held by such Equity Shareholder in TRANSFEROR COMPANY NO.1 FOR SECTION A.

b) To every Equity Shareholder of TRANSFEROR COMPANY NO.2 FOR SECTION A, 83 (Eighty-Three) Equity Shares of Rs.10/- credited as fully paid-up in the TRANSFEREE COMPANY FOR SECTION A (hereinafter referred to as the "New Equity Shares") for every 5 (Five) Equity Shares of Rs.10/- each fully paid-up held by such Equity Shareholder in TRANSFEROR COMPANY NO.2 FOR SECTION A.

c) To every Equity Shareholder of TRANSFEROR COMPANY NO.3 FOR SECTION A, 118 (One

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Hundred Eighteen) Equity Shares of Rs.10/- credited as fully paid-up in the TRANSFEREE COMPANY FOR SECTION A (hereinafter referred to as the "New Equity Shares") for every 7 (Seven) Equity Shares of Rs.10/- each fully paid-up held by such Equity Shareholder in TRANSFEROR COMPANY NO.3 FOR SECTION A.

d) To every Equity Shareholder of TRANSFEROR COMPANY NO.4 FOR SECTION A, 120(One Hundred Twenty) Equity Shares of Rs.10/- credited as fully paid-up in the TRANSFEREE COMPANY FOR SECTION A (hereinafter referred to as the "New Equity Shares") for every 7 (Seven) Equity Shares of Rs.10/- each fully paid-up held by such Equity Shareholder in TRANSFEROR COMPANY NO.4 FOR SECTION A.

e) To every Equity Shareholder of TRANSFEROR COMPANY NO.5 FOR SECTION A, 161 (One Hundred Sixty-One) Equity Shares of Rs.10/- credited as fully paid-up in the TRANSFEREE COMPANY FOR SECTION A (hereinafter referred toas the "New Equity Shares") for every 3 (Three) Equity Shares of Rs.10/- each fully paid-up held by such Equity Shareholder in TRANSFEROR COMPANY NO.5 FOR SECTION A.

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IN RESPECT OF SECTION B OF THE SCHEME

f) To every Equity Shareholder of TRANSFEROR COMPANY FOR SECTION B, 5 (Five) Equity Shares of Rs. 10/- credited as fully paid-up in the TRANSFEREE COMPANY FOR SECTION B (hereinafter referred to as the "New Equity Shares") for every 2 (Two) Equity Shares of Rs. 10/- each fully paid-up held by such Equity Shareholder in TRANSFEROR COMPANY FOR SECTION B."

8. The Petitioner Companies have annexed the Share Valuation Report dated 01st November, 2022 given by CA Mukesh Banka, Registered Valuer, in respect of Securities or Financial Assets, registered with the Insolvency and Bankruptcy Board of India in relation to the share exchange ratio.

9. A perusal of the present Petition discloses that initially, the Petitioner Companies had filed a Company Application No. 07/ALD/2023 seeking directions of this Tribunal for dispensing with the requirement of the convening meetings of the Equity Shareholders of the Petitioner Companies, Unsecured Creditors of Petitioner No 1 , Petitioner No 4 and Petitioner No 7and to convene

and hold the separate meeting of Secured Creditors of the Petitioner No.7 .The Petitioner No 1 to Petitioner No 6 had no Secured Creditors , and Petitioner No 2 , Petitioner No 3 , Petitioner No 4 and Petitioner No 6 had no Unsecured Creditors.

10. Accordingly, this Tribunal vide its order dated 27th July, 2023 (date of pronouncement), allowed the above-mentioned prayers, by dispensing with the requirement of convening the meetings of the Equity Shareholders of Petitioner Companies, and Unsecured Creditors of Petitioner No 1, Petitioner No 4 and Petitioner No 7 and to convene and hold the separate meeting of Secured Creditors of the Petitioner No.7.

11. The meeting as directed by this Tribunal was convened and held on Saturday, 16th September, 2023 and the Chairperson appointed by this Tribunal has filed his report on the said meeting on 30th September, 2023.

12. This Tribunal vide its order dated 19th October, 2023, directed Notice to be issued in the present Company Petition/Composite Scheme of Amalgamation to the following Statutory Authorities, viz., (i) Central

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Government through Regional Director (Northern Region), New Delhi; (ii) Registrar of Companies, Uttar Pradesh, Kanpur; (iii) Official Liquidator, Allahabad; and (iv) Jurisdictional Income Tax Authority.

13. This Tribunal further directed that the notice of hearing will also be advertised in "Financial Express" in English and "Amar Ujala" in Hindi language, having wide circulation over the area where the registered office of the Petitioners Companies are situated.

14. In compliance thereof, the Petitioner Companies have filed an Affidavit of service and publication vide diary no. 3034 dated 01.12.2023, confirming that notices have been duly published in "Financial Express" in English and "Amar Ujala" in Hindi language on 23rd November, 2023. The Petitioner Companies have also served notice of the Company Petition to (i) Central Government through Regional Director (Northern Region), New Delhi; (ii) Registrar of Companies, Uttarakhand; (iii) Official Liquidator, Dehradun;(iv) Principal Chief Commissioner of Income Tax, Lucknow; (v) Jurisdictional Income Tax Authority.

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15. In response to the above-stated notice, the Registrar of Companies, Ministry of Corporate Affairs, Kanpur has submitted its Report dated 23rd November,2023. No objection has been raised by the Registrar of Companies on the Composite Scheme of Amalgamation.

16. In response to the above-stated notice, the Regional Director, Northern Region, Ministry of Corporate Affairs, New Delhi has submitted its Report under diary No. 09021090100720 23 on 13-12-2023. No objection has been raised by the Regional Director on the Composite Scheme of Amalgamation.

17. In response to the above-stated notice, the Official Liquidator, Ministry of Corporate Affairs, Allahabad, Uttar Pradesh has also submitted its Report under diary No. 09021090100720 23 on19th December, 2023 wherein it has been stated that the Official Liquidator has no objection to the dissolution of the Transferor Companies without winding up pursuant to provisions of Sections 230 and 232 of the Companies Act, 2013 and other applicable sections and rules thereunder.

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18. In response to the notices served, the Income Tax Department has furnished its Report dated 28th November,2023 in respect of the Petitioner Companies. In the said Report the Income Tax Department has reported regarding outstanding demand in respect of Petitioner No.4 amounting to Rs 1,760+ interest. The Income Tax Department has also reported that there are no outstanding demands in respect of other Petitioner Companies and also there are no pending assessment proceedings in respect of the Petitioner Companies. The Relevant excerpts of report have been produced hereunder:

"6. *That after perusal of the assessment records of Heritage Commosales Private Limited (Transferor Company No. 4) maintained by the Income Tax Department on ITBA, the following facts emerge which clearly reflect that there are outstanding demands as on the date of filing of the present affidavit, as per the table below.*

Sl. No.	*A.Y.*	*Section of I.T. Act under which order passed*	*Date of order*	*Outstanding Demand (Rs.)*

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1	*2019-20*	*143 (1)(a)*	*03.12.2019*	*1,760+interest*

7. *That similarly on a perusal of the assessment records, in the matter of the remaining 04 transferor companies (Transferor Companies No. 2, 3, 4, 5 & 6) and the transferee company, maintained by the Income Tax Department on ITBA, the facts emerge, clearly reflect that there are no outstanding demands as on the date of filing of the present affidavit.*

8. *That apart from above, no assessment / penalty proceedings against any of the transferor companies and the transferee company is pending as on the date of filing of the present affidavit"*

19. The Petitioner Companies have filed Affidavit vide diary no. 3033 dated 01.12.2023, wherein the Petitioner Company namely - Heritage Commosales Private Limited/ Petitioner No 4 has submitted that it has paid the outstanding Tax of Rs. 1,760/-. The relevant excerpt thereof has been reproduced hereunder:

"The Deponent submits that the Petitioner Transferor Company namely Heritage Commosales Private Limited has paid the outstanding Income Tax Demand for the Assessment Year 2019- 2020 amounting to Rs 1,760/-. Copy of the said challan evidencing payment of Tax is annexed marked - ANNEXURE - B The Deponent duly

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authorized hereby confirms that the Petitioner Transferee Company undertakes to pay the outstanding Interest for delayed payment of Income Tax made by the Petitioner Transferor Company namely Heritage Commosales Private Limited computed or arrived at subsequently after the sanction of the Scheme."

20. The Income Tax Department has furnished another Report dated 01.03.2024 in respect of the Petitioner Companies. In the said Report the Income Tax Department has reported regarding outstanding demand in respect of Petitioner No.4 amounting to Rs 782. The Income Tax Department has also reported that there are no outstanding demands in respect of other Petitioner Companies and also there are no pending assessment proceedings in respect of the Petitioner Companies. The Relevant excerpts of the report have been produced hereunder:

> ***"5.*** *That after perusal of the assessment records of Heritage Commosales Private Limited (Transferor Company No.4) maintained by the Income Tax Department on ITBA portal, the following facts emerge which clearly reflect that there are outstanding demands as on the date of filing of the present affidavit, as per the table below.*

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Sl. No.	*A.Y.*	*Section of I.T. Act under which order passed*	*Date of order*	*Outstanding Demand (Rs.)*
1	*2019-20*	*220 (2)*	*10.01.2024*	*782*

6. *That similarly on a perusal of the assessment records in the matter of the remaining 04 transferor companies (Transferor Companies No. 2,3,5 & 6) and the transferee company maintained by the Income Tax Department on ITBA portal, the following facts emerge which clearly reflect that there are no demands as on the date of filing of the present affidavit is outstanding. That apart from above, no assessment / penalty proceedings against any of the transferee company and the transferor company having jurisdiction with this circle is pending as on the date of filing of the present affidavit."*

21. The Petitioner Companies have filed Affidavit vide diary no. 1349 dated 01.07.2023, wherein the Petitioner Company namely - Heritage Commosales Private Limited/ Petitioner No 4 has submitted that it has paid the outstanding Tax of Rs. 782/-. The relevant excerpt thereof has been reproduced hereunder:

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"3. *That the Deponent hereby submits that the Petitioner Transferor Company namely HERITAGE COMMOSALES PRIVATE LIMITED have paid the outstanding demand of Rs 782/- on 16-03-2024 under challan No 20595. Copy of challan evidencing payment of Tax is annexed and marked ANNEXURE - B."*

22. The Petitioner Companies have filed Affidavit vide diary no. 09021090100720 23 dated 13-12-2023, wherein they have replied to the observations of the Regional Director, Northern Region, Ministry of Corporate Affairs.

Observation by RD:

"10. That the following as per Clause 26 of the ROC Report dated 23.11.2023, following observation was raised:

- In this merger, there are two plans i.e. Section A and Section B. In Section A, Transferor Companies No. 1 to 5 are merging with the Transferee Company and in Section B, Transferor Company No. 6 is also merging with the Transferee Company."

Petitioners' reply to observation by RD:

"12. *That the averments made in paragraph 10 of the said affidavit are matter of records and hence the Deponent has no reply to offer. It is a Composite*

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Scheme of Amalgamation split into 2 parts wherein in Section A 5 Transferor Companies are merging with the Transferee Company and in Section B 1 Transferor Company is merging with 1 Company. The Transferee Company being in both the cases and the same has been mentioned in the Composite Scheme of Amalgamation annexed to Company Petition."

23. The Petitioner Companies have also filed Affidavit vide Diary No. 09021090100720 23 dated 02nd February, 2024, confirming that the Petitioner Companies have not received any objection/representation from any person against the Petition or the proposed Composite Scheme of Amalgamation in response to the publication of the notice of hearing of the present Petition in Newspapers.

24. We have gone through the reports/comments of the Ld. Registrar of Companies, Kanpur , Ld. Regional Director (Northern Region), Ministry of Corporate Affairs, New Delhi; Ld. Official Liquidator, Ministry of Corporate Affairs, Allahabad; and the Income Tax Department ; the affidavits in reply filed by the Petitioner Companies and after perusing the same, we find that there appears to be no reservation to grant sanction to the Composite

Scheme and we are of the view that the sanction of the present Composite Scheme is not against public policy, nor it would be prejudicial to the public interest at large.

25. In addition to the above, all the statutory compliance seems to have been complied with by the Petitioner Companies, therefore, the present Company Petition deserves to be allowed in terms of its Prayer Clause.

26. As a result, the proposed Composite Scheme of Amalgamation, which is annexed to the Company Petition stands approved and sanctioned and the same shall be binding on all the Shareholders and Creditors of the above-named Petitioner Companies and also on the Petitioner Companies with effect from the Appointed Date, i.e., 1st day of April, 2022. The Petitioner Companies are required to act upon as per terms and conditions of the sanctioned Composite Scheme of Amalgamation.

27. While approving the Composite Scheme as above, it is clarified that this order should not be construed as, in any way, granting exemption from payment of stamp duty (if any, is applicable), taxes (including Income Tax,

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GST or any other charges, if any, are applicable) and payment in accordance with law or in respect to any permission/compliance with any other requirement which may be specifically required under any law. The transferee company shall comply with the provisions of section 170A of the Income Tax Act, 1961 for filing of modified tax returns if any required to be filed.

28. THIS TRIBUNAL DO FURTHER ORDER:

a) Upon the Composite Scheme becoming effective, all properties, rights and interest of AVENUE SALES PRIVATE LIMITED; BLACKBASS TRADELINK PRIVATE LIMITED;GODHULI RETAILERS PRIVATE LIMITED; HERITAGE COMMOSALES PRIVATE LIMITED; RAM KRIPAL EXIM PRIVATE LIMITED and ARYA TRADECOM PRIVATE LIMITED be transferred to and vested in without further act or deed in RAYANA PAPER BOARD INDUSTRIES LIMITED and accordingly the same shall pursuant to Section 232 of the Companies Act, 2013 and read with Companies (Compromises, Arrangements and Amalgamation) Rules, 2016 be transferred to and vested in RAYANA PAPER BOARD INDUSTRIES LIMITED for all the estate and interest of AVENUE SALES PRIVATE LIMITED; BLACKBASS TRADELINK PRIVATE LIMITED; GODHULI

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RETAILERS PRIVATE LIMITED; HERITAGE COMMOSALES PRIVATE LIMITED; RAM KRIPAL EXIM PRIVATE LIMITED and ARYA TRADECOM PRIVATE LIMITED but subject nevertheless to all charges, now affecting the same; and

b) Upon the Composite Scheme becoming effective, all liabilities and duties of AVENUE SALES PRIVATE LIMITED; BLACKBASS TRADELINK PRIVATE LIMITED;GODHULI RETAILERS PRIVATE LIMITED; HERITAGE COMMOSALES PRIVATE LIMITED; RAM KRIPAL EXIM PRIVATE LIMITED and ARYA TRADECOM PRIVATE LIMITED be transferred without further act or deed to RAYANA PAPER BOARD INDUSTRIES LIMITED and accordingly the same shall pursuant to Section 232 of the Companies Act, 2013 and read with Companies (Compromises, Arrangements and Amalgamation) Rules, 2016 be transferred to and become the liabilities and duties of RAYANA PAPER BOARD INDUSTRIES LIMITED; and

c) Upon the Composite Scheme becoming effective, all the employees of AVENUE SALES PRIVATE LIMITED; BLACKBASS TRADELINK PRIVATE LIMITED;GODHULI RETAILERS PRIVATE LIMITED; HERITAGE COMMOSALES PRIVATE LIMITED; RAM KRIPAL EXIM PRIVATE LIMITED and ARYA TRADECOM PRIVATE LIMITED be transferred

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without further act or deed to RAYANA PAPER BOARD INDUSTRIES LIMITED and accordingly the same shall pursuant to Section 232 of the Companies Act, 2013 and read with Companies (Compromises, Arrangements and Amalgamation) Rules, 2016 be transferred to and become the employees of RAYANA PAPER BOARD INDUSTRIES LIMITED; and

d) Upon the Composite Scheme becoming effective, all proceedings and/or suit appeals now pending by or against AVENUE SALES PRIVATE LIMITED; BLACKBASS TRADELINK PRIVATE LIMITED; GODHULI RETAILERS PRIVATE LIMITED; HERITAGE COMMOSALES PRIVATE LIMITED; RAM KRIPAL EXIM PRIVATE LIMITED and ARYA TRADECOM PRIVATE LIMITED shall be continued by or against RAYANA PAPER BOARD INDUSTRIES LIMITED; and

e) Upon the Composite Scheme becoming effective, RAYANA PAPER BOARD INDUSTRIES LIMITED - Transferee Company do issue and allot shares to the shareholders of AVENUE SALES PRIVATE LIMITED; BLACKBASS TRADELINK PRIVATE LIMITED; GODHULI RETAILERS PRIVATE LIMITED; HERITAGE COMMOSALES PRIVATE LIMITED; RAM KRIPAL EXIM PRIVATE LIMITED and ARYA TRADECOM PRIVATE LIMITED as envisaged in the

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said Composite Scheme of Amalgamation and for that, if necessary, to increase the authorized share capital; and

f) Upon the Composite Scheme becoming effective, the schedule of assets and liabilities in respect of AVENUE SALES PRIVATE LIMITED; BLACKBASS TRADELINK PRIVATE LIMITED; GODHULI RETAILERS PRIVATE LIMITED; HERITAGE COMMOSALES PRIVATE LIMITED; RAM KRIPAL EXIM PRIVATE LIMITED, ARYA TRADECOM PRIVATE LIMITED and RAYANA PAPER BOARD INDUSTRIES LIMITED be filed within a period of 60 days from the date of the order to be made herein; and

g) Upon the Composite Scheme becoming effective, the Petitioner Transferor Companies namely - AVENUE SALES PRIVATE LIMITED; BLACKBASS TRADELINK PRIVATE LIMITED; GODHULI RETAILERS PRIVATE LIMITED; HERITAGE COMMOSALES PRIVATE LIMITED; RAM KRIPAL EXIM PRIVATE LIMITED and ARYA TRADECOM PRIVATE LIMITED shall stand dissolved from the effective date; Further the Registrar of Companies shall place all documents relating to the Transferor Companies and registered with him on the file kept by him in relation to the Transferee Company and

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the files relating to the said six Transferor Companies shall be consolidated accordingly; and

h) Upon the Composite Scheme becoming effective, RAYANA PAPER BOARD INDUSTRIES LIMITED, AVENUE SALES PRIVATE LIMITED; BLACKBASS TRADELINK PRIVATE LIMITED; GODHULI RETAILERS PRIVATE LIMITED; HERITAGE COMMOSALES PRIVATE LIMITED; RAM KRIPAL EXIM PRIVATE LIMITED and ARYA TRADECOM PRIVATE LIMITED shall within 30 days after the date of obtaining the Certified Copy of the order to be made herein cause certified copies of this order to be delivered to the Registrar of Companies, Kanpur for registration respectively.

29. The Petitioner Companies shall supply legible printouts of the Composite Scheme in an acceptable form to the Registry and the Registry will append such printouts, after verification, to the certified copy of the Order.

30. Certified copy of this Order be supplied, if applied for, subject to compliance with usual formalities.

31. That the Transferee Company shall deposit an amount of Rs. 25,000/- (Rupees Twenty-Five Thousand Only) in favour of "The Ministry of Corporate Affairs" within a period of four weeks from the date of receipt of the

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certified copy of this order and file affidavit of compliance thereof.

32. All the concerned Regulatory Authorities and other persons to act on a copy of this Order annexed with the Composite Scheme duly authenticated by the Registrar, National Company Law Tribunal, Allahabad Bench.

33. Any person interested shall be at liberty to apply to the Tribunal in the above matter for any directions that may be necessary.

34. Accordingly, the present Company Petition bearing CP (CAA) No. 19/ALD/2023 is allowed and stands disposed of.

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Ashish Verma
Member (Technical)

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Praveen Gupta
Member (Judicial)

Date: 30th July, 2024